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THREE REGIMES AND CLASSIFICATION

CENTRAL QUESTION: WHICH CONSTITUTIONAL FAILURE EXISTS?

security threatened by war/external aggression/armed rebellion -> ARTICLE 352

State government cannot be constitutionally carried on -> ARTICLE 356

financial stability/credit threatened -> ARTICLE 360

Part XVIII is constitutional self-defence, not extra-constitutional rule.

METHOD: classify -> threshold -> procedure -> effects -> safeguards -> exit.

2

ARTICLE 352 THRESHOLD AND TERRITORIAL SCOPE

GRAVE EMERGENCY + "security of India or any part of the territory thereof"

-> ground: war | external aggression | armed rebellion

-> actual occurrence not necessary where imminent danger exists

-> proclamation: whole India OR specified part

-> no textual State-only minimum territorial floor

LOCALISED ATTACK: geography does not trigger 356; test 352 threshold, while ordinary security law may suffice. Terrorism != automatic external aggression.

3

ARTICLE 352 PROCEDURE

Union Cabinet decision communicated in writing -> President

-> laid before both Houses -> approval within one month

-> majority of total membership + 2/3 present and voting

-> six months from second resolution -> same-majority renewals

DISSOLVED LOK SABHA: Rajya Sabha approval bridges only to 30 days from the reconstituted Lok Sabha's first sitting.

EXIT: President revokes; Lok Sabha simple-majority disapproval forces revocation; 1/10 of total Lok Sabha membership -> special sitting within 14 days.

4

HISTORY AND AMENDMENT ARC

26 Oct 1962 external aggression -> 10 Jan 1968 revocation

3 Dec 1971 external aggression -> 27 Mar 1977 revocation

25 Jun 1975 internal disturbance -> 21 Mar 1977 revocation

38TH AMENDMENT (1975): former Articles 352(5), 356(5) and 360(5)

made presidential satisfaction, proclamation validity and continuance final/conclusive and non-justiciable.

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made presidential satisfaction, proclamation validity and continuance final/conclusive and non-justiciable.
42ND AMENDMENT (1976; territorial changes effective 3 Jan 1977):
Article 352(1) enabled a specified-part proclamation; provisos to Articles 353, 358 and 359(1A)/(2) permitted or controlled extra-area effects only where linked activities threatened the security of India or any part.
44TH AMENDMENT (1978; safeguards effective 20 Jun 1979):
Article 352(1)/(9) used "armed rebellion"; 352(3) required written Cabinet decision; 352(4)-(8) added one-month, special-majority, renewal and Lok Sabha disapproval safeguards; former finality clauses were removed/replaced;
Article 358(1)-(2) narrowed Article 19 effect and added recital/nexus;
Article 359(1)/(1A)/(1B) protected Articles 20-21 and added recital/nexus.

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REVIEW AND FEDERAL EFFECTS

MINERVA MILLS v UNION OF INDIA (1980): Article 352 condition precedent is reviewable for mala fides,
absurd/perverse satisfaction and wholly extraneous/irrelevant grounds.
LIMIT: no judicial reweighing of sufficiency or merits substitution.
ARTICLE 353: Union directions + parliamentary non-Union-field competence.
ARTICLE 250: State List law with six-month post-emergency tail.
ARTICLE 123: ordinance may cover temporarily available State-field competence.
PARTIAL AREA: extra-State effect only "if and in so far as" linked security threat.

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REVENUE, TERMS AND RIGHTS

ARTICLE 354: modify Articles 268-279 temporarily; order laid before Parliament; not beyond financial year in which Emergency ceases.
TERMS: Parliament may extend Lok Sabha/Assembly one year at a time; never beyond six months after cessation.
ARTICLE 358: automatic Article 19 rule; war/external aggression; recital/nexus.
ARTICLE 359: presidential enforcement order; specified rights/area/period; Articles 20 and 21 excluded; rights not textually erased.

7

LIBERTY CORRECTION

ADM JABALPUR v SHIVKANT SHUKLA (1976): majority denied the habeas corpus route to enforce Article 21 during the operative Article 359 order
-> JUSTICE H.R. KHANNA dissent: life/liberty cannot depend wholly on executive permission; legality survives emergency
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-> 44TH AMENDMENT, Article 359: Articles 20 and 21 cannot be included in an enforcement-suspension order
-> K.S. PUTTASWAMY v UNION OF INDIA (2017, nine judges): held the ADM Jabalpur majority seriously flawed and expressly overruled it
CURRENT RULE: 20/21 remain enforceable; ADM Jabalpur is warning, not authority.

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ARTICLES 355, 365 AND 356 TRIGGER

ARTICLE 355: Union duty - protection + constitutional government
ARTICLE 365: direction breach may support an inference; never automatic
ARTICLE 356: Governor report OR otherwise + relevant material -> government cannot be carried on according to Constitution
NOT ENOUGH ALONE: local attack | law/order failure | maladministration | policy disagreement | untested majority claim
LAST RESORT: assistance/warning/floor test where feasible.

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ARTICLE 356 PROCEDURE AND EFFECTS

APPROVAL: two months, simple majority
CONTINUANCE: six months from issue; renew every six months; max three years
BEYOND ONE YEAR: Article 352 Emergency in all India or all/part of the State + Election Commission of India certificate that election difficulty requires it
EFFECTS: State executive assumed; ministry displaced; legislative power by/under Parliament; Article 357 delegation/expenditure; laws continue until changed
EXACT ARTICLE 356(1) PROVISIO: President cannot assume High Court powers or suspend any constitutional provision relating to High Courts.
OTHER LIMITS: Assembly not automatically dissolved; no direct Fundamental Rights suspension.

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BOMMAI AND POST-1994 RESTRAINT

S.R. BOMMAI v UNION OF INDIA (1994): review | relevant material | floor test | no p dissolution | restoration | federalism | secularism | no partisan dismissal
RAMESHWAR PRASAD v UNION OF INDIA (2006): Bihar dissolution invalid; no restoration after the election process had advanced
DECLINE: legal risk + coalition dependence + regional parties + scrutiny

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SARKARIA COMMISSION ON CENTRE-STATE RELATIONS (1983-88): warning where feasible, floor test and Article 356 only as last resort.
PUNCHHI COMMISSION ON CENTRE-STATE RELATIONS (2007-10): reasoned reports, floor testing and restrained/localised response; recommendations are not law.
MANIPUR: 13 Feb 2025 proclamation -> revoked 4 Feb 2026 by S.O. 509(E).

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ARTICLE 360 AND COMPARISON

ARTICLE 360: financial stability/credit of India or part threatened
-> two months, simple majority -> no renewal cycle / no fixed maximum
-> President may vary/revoke
-> Article 360(3): Union directions on State financial propriety
-> Article 360(4)(a)(i): State-service salary/allowance reductions
-> Article 360(4)(a)(ii): specified State Money Bills or other Bills governed by Article 207 may be directed to be reserved for Presidential consideration after passage by the State Legislature
-> Union salaries, expressly including Supreme Court/High Court judges
STATUS: never proclaimed; Article 293 regulates State borrowing and specified Union-consent cases, while 1991 crisis management was not Article 360.
352 special/renewable | 356 simple/3-year max | 360 simple/no renewal.

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PYQ ROUTE AND QUALIFIED VERDICT

2018 GS-II: 360 threshold -> approval -> directions -> never-used verdict
2018 Prelims: Article 356(1)(b) legislature by/under Parliament; key withheld
2020 GS-II: ordinary centralising statutes != formal emergency basis
2023 Prelims: Article 355 Union duty + Article 22 detention safeguards + former Prevention of Terrorism Act, 2002; official key withheld
2023 GS-II: S.R. Bommai review/floor-test rule + commission safeguards
2024 Prelims: Part XVIII constitutional emergency chapter; official key D held
ANSWER: claim -> named Article/case -> mechanism -> analysis -> qualification
VERDICT: exceptional power is legitimate only when necessary, reviewable, proportionate and directed toward restoration of ordinary democracy.

ANSWER SPINE

Claim -> named constitutional authority -> mechanism -> analysis -> qualification

Exceptional power must remain necessary, reviewable, rights-bounded and directed back to ordinary democracy.

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